

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FORMUKLEEN, INC.,

Complainants

v.

TOP SHIPPING SYSTEMS, CORP.,

***RESPONDENT'S OPPOSITION TO COMPLAINANT'S MOTION TO EXTEND DISCOVERY
AND REMAINING DEADLINES***

Respondent, Top Shipping Systems Corp. ("TSS"), respectfully submits this Opposition to Complainant's Motion to Extend Discovery and Remaining Deadlines and states as follows:

I. INTRODUCTION

Complainant requests that the Court reopen discovery and extend the remaining case deadlines, alleging that recently completed depositions produced "material testimony," "admissions," "contradictions," and factual issues requiring follow-up discovery.

The Motion should be denied because Complainant has failed to demonstrate good cause under the Commission's Rules. Although Complainant repeatedly references "material testimony," "admissions," and "contradictions," the Motion never identifies:

- the specific testimony;
- the alleged admissions;
- the alleged contradictions;
- the additional discovery sought; or
- why such discovery could not have been pursued before discovery closed.

Without identifying any specific newly discovered evidence or extraordinary circumstance warranting additional discovery, Complainant has not met her burden of establishing good cause to modify the Court's Scheduling Order.

As discussed below, the record demonstrates that Respondent cooperated throughout discovery, produced the requested witnesses, and completed discovery in accordance with the Court's Scheduling Order.

II. THE DISCOVERY SCHEDULE WAS JOINTLY NEGOTIATED AND AGREED UPON

The discovery schedule was the product of extensive discussions between the parties and was ultimately adopted by the Court.

Specifically:

- The parties exchanged numerous emails negotiating the schedule.
- Respondent proposed modest adjustments to accommodate witness availability
- Complainant rejected Respondent's proposal, stating that extending the schedule beyond the Presiding Officer's September completion target was "one-sided and unworkable."
- The parties continued to confer and ultimately agreed to a revised schedule, which the Court adopted.

Respondent relied on that agreed schedule, prepared its witnesses, coordinated depositions, and completed discovery in accordance with the Court's Scheduling Order.

Having previously maintained that extending the schedule beyond the Presiding Officer's target was "one-sided and unworkable," Complainant now seeks precisely that relief without identifying any extraordinary circumstance or newly discovered evidence that would justify reopening discovery.

III. RESPONDENT FULLY COOPERATED THROUGHOUT DISCOVERY

Respondent respectfully disagrees with Complainant's characterization of its discovery conduct.

Throughout discovery, Respondent acted in good faith and consistently cooperated with Complainant's requests. Specifically:

- Respondent timely responded to written discovery.
- Respondent produced responsive documents.
- Respondent exchanged numerous communications with Complainant in an effort to resolve scheduling and discovery issues without Court intervention.
- Respondent worked with Complainant to develop a mutually agreeable discovery schedule.
- Respondent made its employees and representatives available for deposition.

- Respondent ultimately produced every witness requested by Complainant, including Mr. Jose De Freitas despite extraordinary circumstances beyond his control.
- Respondent participated fully in each deposition and made reasonable efforts to complete discovery within the Court's Scheduling Order.

At no point did Respondent refuse to participate in discovery or intentionally delay these proceedings. To the contrary, the record reflects Respondent's continued efforts to cooperate throughout the discovery process.

IV. DEPONENT MR. JOSE DE FREITAS DEMONSTRATED GOOD FAITH

Complainant suggests that Respondent delayed discovery. The record demonstrates otherwise.

When Mr. Jose De Freitas remained in Venezuela due to extraordinary circumstances, including an earthquake, continuing aftershocks, unreliable communications, internet disruptions, and the tragic loss of a close family member, Respondent immediately advised Complainant of those circumstances and repeatedly confirmed that Mr. De Freitas intended to appear for deposition. Respondent explained only that it could not guarantee internet connectivity because those circumstances were entirely beyond Mr. De Freitas' control.

Despite those conditions, Mr. De Freitas made every reasonable effort to participate. Specifically:

- He traveled approximately thirty minutes to obtain a reliable internet connection.
- He successfully established internet connectivity.
- He logged into the scheduled deposition.
- He remained available and waiting to testify.

Although Complainant elected not to proceed that day, Respondent again produced Mr. De Freitas for deposition on July 3, 2026, where he fully completed his testimony.

Accordingly, Mr. De Freitas attempted to appear for deposition on two separate occasions. These facts demonstrate Respondent's diligence, cooperation, and good-faith efforts to comply with its discovery obligations, and do not support any suggestion that Respondent sought to delay or avoid discovery.

V. COMPLAINANT HAS NOT SHOWN GOOD CAUSE

The central issue before the Court is whether Complainant has demonstrated good cause to reopen discovery.

Respondent respectfully submits that Complainant has not.

The Motion repeatedly refers to:

- "material testimony";
- "admissions";
- "contradictions"; and
- "follow-up discovery."

Yet nowhere does the Motion identify:

- the testimony;
- the admissions;
- the contradictions;
- the additional discovery sought; or
- why such discovery could not reasonably have been pursued during the discovery period.

Complainant's Motion also fails to identify any newly discovered evidence or any witness that could not have been deposed during the discovery period.

General allegations are insufficient to establish good cause.

If additional questions following depositions alone justified reopening discovery, virtually every case would require an extension after depositions concluded. That is not the purpose of a Scheduling Order.

VI. RESPONDENT'S PROCEDURAL CONCERNS

Respondent respectfully notes that several procedural concerns arose during the depositions.

Among them:

- Respondent requested the use of a neutral, independent Spanish interpreter prior to the depositions. That request was denied. Instead, FormuKleen's President appeared and served as the Spanish interpreter during portions of the deposition.

Respondent respectfully submits that this procedure was unfair and placed Respondent's employees in the difficult position of providing testimony through an interested party who is a principal of the opposing party and possesses personal knowledge of the underlying dispute. Respondent believes that the presence and participation of FormuKleen's President as the interpreter created an atmosphere that Respondent's employees reasonably perceived as intimidating and undermined the appearance of neutrality expected during deposition testimony. A neutral, certified interpreter would have avoided those concerns while ensuring the accuracy and impartiality of the translated testimony.

- During Mr. Ricky Villena's deposition, Respondent requested a brief lunch break after approximately six hours of testimony. Although the request was not granted, Mr. Villena continued his testimony and fully cooperated until the deposition concluded. This further demonstrates Respondent's good-faith participation throughout discovery.

These issues should not now serve as a basis for rewarding Complainant with additional discovery.

VII. ALTERNATIVE REQUEST FOR RELIEF

Should your Honor determine that a limited extension of discovery is appropriate, Respondent respectfully requests that the Court impose appropriate safeguards to ensure that any additional discovery is conducted fairly and impartially.

Specifically, Respondent requests that the Court:

1. Strike the testimony from the two depositions in which FormuKleen's President served as the Spanish interpreter, or alternatively, order that those depositions be retaken using a neutral, independent, certified Spanish interpreter.
2. Require that any additional deposition involving a Spanish-speaking witness be conducted using a neutral, independent, certified Spanish interpreter.
3. Permit Respondent to appear with legal counsel at any additional deposition to protect the rights and interests of Respondent and its employees.
4. Limit any additional discovery to the specific issues identified by Complainant and approved by the Court upon a showing of good cause.
5. Grant such other and further relief as the Court deems just and proper to ensure the fairness and integrity of the discovery process.

These safeguards are necessary to ensure that any additional discovery is conducted in a fair, impartial, and orderly manner.

VIII. CONCLUSION

For the foregoing reasons, Respondent respectfully requests that the Court deny Complainant's Motion to Extend Discovery and Remaining Deadlines because Complainant has failed to demonstrate good cause to modify the Court's Scheduling Order.

Alternatively, should the Court determine that a limited extension is warranted, Respondent respectfully requests that the Court grant only such relief as is necessary, subject to the safeguards requested herein, including the use of a neutral, independent, certified Spanish interpreter, permission for Respondent to appear with legal counsel at any additional deposition, and such other relief as the Court deems just and proper.

Respectfully Submitted,

TOP SHIPPING SYSTEMS CORP

Ricky Villena

Vice President, pro se

CERTIFICATE OF SERVICE

I hereby certify that on July 13, 2026, I have served the foregoing to all parties of record in this proceeding via electronic mail.

By:

TOP SHIPPING SYSTEMS CORP

Ricky Villena

Vice President, pro se